

1 ENGROSSED SENATE
2 BILL NO. 1567

By: Stanley of the Senate

3 and

4 Fetgatter of the House

5
6 An Act relating to the practice of nursing; amending
7 Section 4, Chapter 340, O.S.L. 2025 (59 O.S. Supp.
8 2025, Section 479.1), which relates to supervising
9 physician of Advanced Practice Registered Nurse;
10 modifying certain restriction on supervision fees;
11 amending Section 1, Chapter 340, O.S.L. 2025 (59 O.S.
12 Supp. 2025, Section 567.4c), which relates to
13 independent prescriptive authority for Advanced
14 Practice Registered Nurse; excluding certain
15 application from specified provisions of law;
16 prohibiting certain requirements by the Oklahoma
17 Board of Nursing; updating statutory language;
18 updating statutory references; and providing an
19 effective date.

20 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

21 SECTION 1. AMENDATORY Section 4, Chapter 340, O.S.L.
22 2025 (59 O.S. Supp. 2025, Section 479.1), is amended to read as
23 follows:

24 Section 479.1. A. As used in this section:

1. "Advanced Practice Registered Nurse" has the same meaning as
defined in Section 567.3a of ~~Title 59 of the Oklahoma Statutes~~ this
title, except that such term does not include a Certified Registered
Nurse Anesthetist;

1 2. "Board" means the State Board of Medical Licensure and
2 Supervision or the State Board of Osteopathic Examiners, or both, as
3 the context indicates; and

4 3. The terms "supervising physician" and "supervision" have the
5 same meaning as defined in Section 567.3a of ~~Title 59 of the~~
6 ~~Oklahoma Statutes~~ this title.

7 B. To be eligible to serve as a supervising physician for an
8 Advanced Practice Registered Nurse who has not obtained independent
9 prescriptive authority under ~~Section 1 of this act~~ Section 567.4c of
10 this title, the physician shall meet the following criteria:

11 1. Have possession of a full and unrestricted license to
12 practice allopathic or osteopathic medicine issued by the State
13 Board of Medical Licensure and Supervision or the State Board of
14 Osteopathic Examiners;

15 2. Have possession of a valid registration to prescribe
16 controlled substances issued by the Drug Enforcement Administration
17 and the Oklahoma State Bureau of Narcotics and Dangerous Drugs
18 Control; and

19 3. Be trained and fully qualified in the field of the Advanced
20 Practice Registered Nurse's specialty as determined by the
21 physician's respective Board; provided, however, a supervising
22 physician for a Certified Nurse-Midwife may be a family practice
23 physician, obstetrician, or gynecologist.

1 C. A supervising physician shall enter into a written
2 supervision agreement with each Advanced Practice Registered Nurse
3 he or she supervises. The supervising physician shall file the
4 supervision agreement with his or her respective Board in the manner
5 prescribed by such Board. The supervision agreement shall specify:

6 1. Any fees charged to the Advanced Practice Registered Nurse
7 for supervision services in accordance with subsection D of this
8 section;

9 2. The scope of the Advanced Practice Registered Nurse's
10 prescriptive authority, subject to any limits on scope of
11 prescriptive authority provided by the rules of the Oklahoma Board
12 of Nursing;

13 3. A description of the extent of the supervision required;

14 4. The duties and responsibilities of the supervising
15 physician;

16 5. Procedures for notice to be provided by the supervising
17 physician to Advanced Practice Registered Nurses for periods of
18 absence in accordance with subsection E of this section; and

19 6. One or more alternate physicians designated to supervise the
20 Advanced Practice Registered Nurse in such periods of absence in
21 accordance with the rules promulgated under subsection H of this
22 section.

1 D. 1. A supervising physician may charge a reasonable fee to
2 the Advanced Practice Registered Nurse for his or her supervision
3 services. Any such fees shall be:

4 a. disclosed in the supervision agreement required under
5 subsection C of this section,

6 b. appropriate based on the actual duties and
7 responsibilities of the supervising physician as
8 outlined in the supervision agreement, and

9 c. a fair market value ~~hourly~~ rate in accordance with the
10 rules promulgated under subsection H of this section,
11 or by mutual agreement between the Advanced Practice
12 Registered Nurse and supervising physician.

13 2. The provisions of this subsection shall apply only to
14 compensation received by the supervising physician directly from the
15 Advanced Practice Registered Nurse. This subsection shall not be
16 construed to:

17 a. preclude a supervising physician from entering into a
18 payment arrangement for supervision fees to be paid by
19 his or her employer or health care entity in lieu of
20 the Advanced Practice Registered Nurse,

21 b. preclude an employer or health care entity of a
22 supervising physician from prohibiting, limiting, or
23 otherwise addressing such supervision fees through
24 policies, contracts, or bylaws, or

1 c. apply to or impact any compensation a supervising
2 physician receives from his or her employer or health
3 care entity for supervision services.

4 E. A supervising physician shall notify all Advanced Practice
5 Registered Nurses under his or her supervision of reasonably
6 anticipated periods of unavailability or incapacity on the part of
7 the supervising physician. Notice shall be given by the method
8 agreed to by the supervising physician and the Advanced Practice
9 Registered Nurse within the written supervision agreement.

10 F. The supervising physician shall report to his or her
11 respective Board, and shall notify all Advanced Practice Registered
12 Nurses under his or her supervision of, any changes to the
13 supervising relationship within thirty (30) calendar days including,
14 but not limited to, the addition or removal of an Advanced Practice
15 Registered Nurse under the physician's supervision or a change to
16 the physician's practice address or contact information. The
17 physician's supervision agreements shall be amended as necessary to
18 reflect any such changes.

19 G. The State Board of Medical Licensure and Supervision and the
20 State Board of Osteopathic Examiners shall not charge any fees to
21 supervising physicians or Advanced Practice Registered Nurses for
22 the maintenance or oversight of supervision agreements or other
23 administrative functions related to the implementation or
24 enforcement of this section.

1 H. The State Board of Medical Licensure and Supervision and the
2 State Board of Osteopathic Examiners shall promulgate a uniform set
3 of rules establishing standards for proper supervision of Advanced
4 Practice Registered Nurses who have not obtained independent
5 prescriptive authority under ~~Section 1 of this act~~ Section 567.4c of
6 this title, including:

7 1. The charging of reasonable fees to provide supervision
8 services. The rules shall establish a fair market value hourly rate
9 for such fees, which shall be redetermined biennially;

10 2. Continuous availability of direct communications either in
11 person or by electronic communications between the Advanced Practice
12 Registered Nurse and supervising physician;

13 3. Oversight and acceptance of responsibility for the ordering
14 and transmission of written, telephonic, electronic, or oral
15 prescriptions for drugs and other medical supplies, subject to the
16 formulary established by the Oklahoma Board of Nursing;

17 4. Review of prescribing patterns of the Advanced Practice
18 Registered Nurse;

19 5. The delineation of a plan for emergencies; and

20 6. The designation of one or more alternate physicians in the
21 absence of the supervising physician.

22 I. A supervising physician may be subject to disciplinary
23 action by his or her respective Board for failure to comply with the
24 provisions of, or the rules promulgated under, this section

1 including, but not limited to, failure to provide proper
2 supervision.

3 J. If either Board imposes limits through rule on the number of
4 Advanced Practice Registered Nurses that a supervising physician may
5 supervise, such limits shall not apply when an Advanced Practice
6 Registered Nurse is practicing in a hospital licensed by the State
7 Department of Health.

8 K. The Executive Director of each Board shall report annually
9 to the respective Board the number of complaints received in
10 relation to this section.

11 L. The State Board of Medical Licensure and Supervision and the
12 State Board of Osteopathic Examiners shall each create and maintain
13 on the respective Board's website a list of physicians who are
14 available to supervise Advanced Practice Registered Nurses.

15 SECTION 2. AMENDATORY Section 1, Chapter 340, O.S.L.
16 2025 (59 O.S. Supp. 2025, Section 567.4c), is amended to read as
17 follows:

18 Section 567.4c. A. An Advanced Practice Registered Nurse
19 recognized by the Oklahoma Board of Nursing as a Certified Nurse
20 Practitioner, Clinical Nurse Specialist, or Certified Nurse-Midwife
21 who has completed a minimum of six thousand two hundred forty
22 (6,240) clinical practice hours with prescriptive authority
23 supervised by a physician may apply to the Oklahoma Board of Nursing
24 for authority to prescribe and order independent of supervision.

1 B. The application for independent prescriptive authority shall
2 include proof that the Certified Nurse Practitioner, Clinical Nurse
3 Specialist, or Certified Nurse-Midwife:

4 1. Holds a valid, current license in the appropriate Advanced
5 Practice Registered Nurse role issued by the Board and is in good
6 standing with the Board; and

7 2. Has completed a minimum of six thousand two hundred forty
8 (6,240) clinical practice hours with prescriptive authority
9 supervised by a physician. This paragraph shall not be construed to
10 exclude practice hours with supervised prescriptive authority
11 obtained prior to ~~the effective date of this act~~ November 1, 2025,
12 from being counted toward the hours required in this paragraph.

13 C. An application for independent prescriptive authority made
14 under this section shall not be considered an initial application
15 for prescriptive authority as described in paragraph 3 of Section
16 567.4a of this title. The Board shall not require an Advanced
17 Practice Registered Nurse applying for independent prescriptive
18 authority under this section to recomplete any minimal requirements
19 for initial application for prescriptive authority as described in
20 paragraph 3 of Section 567.4a of this title.

21 D. Independent prescriptive authority granted under this
22 section shall be valid until the expiration of the current license
23 to practice and may be renewed upon application to the Board at the
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1 same time and for the same period as the renewal of the license to
2 practice.

3 ~~D.~~ E. The Board may suspend or revoke independent prescriptive
4 authority granted under this section in accordance with the
5 Administrative Procedures Act for violation of the provisions of, or
6 the rules promulgated under, the Oklahoma Nursing Practice Act.

7 ~~E.~~ F. The Board may assess a reasonable fee for the review of
8 initial and renewal applications under the provisions of this
9 section.

10 SECTION 3. This act shall become effective November 1, 2026.

11 Passed the Senate the 23rd day of March, 2026.

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Presiding Officer of the Senate

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15 Passed the House of Representatives the ____ day of _____,
16 2026.

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Presiding Officer of the House
of Representatives

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